

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DESMOND CORYATT,

Index No.:

Plaintiff,

-against-

SUMMONS

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, SERGEANT f/n/u SCOGMANILLO
(SHIELD# 4519), POLICE OFFICER JOSEPH VITI
(SHIELD# 9113), DETECTIVE DEVIN BAKER
(SHIELD# 1595), POLICE OFFICER ELVIS COLLADO
(SHIELD# 30692), JOHN DOE LIEUTENANT, name unknown,
and JOHN DOE POLICE OFFICERS, names unknown,

Defendants.

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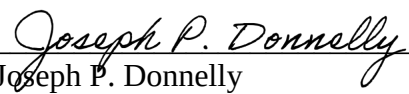
The place of trial is designated in the caption of this matter. The basis of venue is:
The County where the incident occurred.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint

Dated: Woodbury, New York
May 26, 2020

Yours, etc.,



Joseph P. Donnelly
**SALENGER, SACK,
KIMMEL & BAVARO, LLP**
Attorneys for Plaintiff
180 Froehlich Farm Boulevard
Woodbury, New York 11797
(516) 677-0100

TO:

CITY OF NEW YORK

Attn: Corporation Counsel, 100 Church Street, 5th Floor, New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza, New York, NY 10007

serve also Corporation Counsel, 100 Church Street, 5th Floor, New York, NY 10007

SERGEANT f/n/u SCOGMANILLO (SHIELD# 4519)

One Police Plaza, New York, NY 10007

serve also Corporation Counsel, 100 Church Street, 5th Floor, New York, NY 10007

POLICE OFFICER JOSEPH VITI (SHIELD# 9113)

One Police Plaza, New York, NY 10007

serve also Corporation Counsel, 100 Church Street, 5th Floor, New York, NY 10007

DETECTIVE DEVIN BAKER (SHIELD# 1595)

One Police Plaza, New York, NY 10007

serve also Corporation Counsel, 100 Church Street, 5th Floor, New York, NY 10007

POLICE OFFICER ELVIS COLLADO (SHIELD# 30692)

One Police Plaza, New York, NY 10007

serve also Corporation Counsel, 100 Church Street, 5th Floor, New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DESMOND CORYATT,

Index No.:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, SERGEANT f/n/u SCOGMANILLO
(SHIELD# 4519), POLICE OFFICER JOSEPH VITI
(SHIELD# 9113), DETECTIVE DEVIN BAKER
(SHIELD# 1595), POLICE OFFICER ELVIS COLLADO
(SHIELD# 30692), JOHN DOE LIEUTENANT, name unknown,
and JOHN DOE POLICE OFFICERS, names unknown,,

Defendants.

-----X

Plaintiff, complaining of the defendants, by his attorneys, SALENGER, SACK,
KIMMEL & BAVARO, LLP, respectfully show to the court and allege as follows:

**FIRST CAUSE OF ACTION
FOR FALSE ARREST**

1. At all times hereinafter mentioned, plaintiff DESMOND CORYATT was, and is,
a resident of Kings County, City and State of New York.

2. Notice of plaintiff's claims against defendants CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT, SERGEANT f/n/u SCOGMANILLO (SHIELD# 4519),
POLICE OFFICER JOSEPH VITI (SHIELD# 9113), DETECTIVE DEVIN BAKER (SHIELD#
1595), POLICE OFFICER ELVIS COLLADO (SHIELD# 30692), JOHN DOE LIEUTENANT,
name unknown, and JOHN DOE POLICE OFFICERS, names unknown, setting forth the nature of
the claims, the description of the time, place and manner in which the injuries were sustained by
the plaintiff and the name and post office address of the plaintiff and of his attorneys, was
presented to the governing body of said defendants on or about November 6, 2019.

3. The Notice of Claim as to those defendants was filed within the statutory time period for filing said Notice of Claim, provided by New York State General Municipal Law.

4. At least thirty (30) days have elapsed since service of such Notice of Claim without payment or adjustment of such claim and adjustment or payment thereof has been rejected or refused.

5. On February 7, 2020, a hearing of plaintiff was held pursuant to General Municipal Law Section 50-h.

6. Upon information and belief, at all times hereinafter mentioned, defendant CITY OF NEW YORK (hereinafter "CITY"), was and remains a municipal corporation, incorporated and operating under the laws of the State of New York.

7. Upon information and belief, at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD"), was and remains a municipal corporation, incorporated and operating under the laws of the State of New York.

8. Upon information and belief, at all times hereinafter mentioned, defendant NYPD was and remains a municipal agency, incorporated and operating under the laws of the State of New York.

9. Upon information and belief, at all times hereinafter mentioned, defendant NYPD was and remains a public authority, incorporated and operating under the laws of the State of New York

10. Upon information and belief, at all times hereinafter mentioned, defendant NYPD was and remains under the supervision and control of defendant CITY.

11. Upon information and belief, at all times hereinafter mentioned, defendant NYPD was and remains the principal law enforcement agency for defendant CITY.

12. Upon information and belief, at all times hereinafter mentioned, defendant CITY was charged with the duty of enforcing the laws, statutes and/or ordinances for the City of New York, State of New York.

13. Upon information and belief, at all times hereinafter mentioned, defendant CITY controlled law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

14. Upon information and belief, at all times hereinafter mentioned, defendant CITY operated law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

15. Upon information and belief, at all times hereinafter mentioned, defendant CITY maintained law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

16. Upon information and belief, at all times hereinafter mentioned, defendant CITY supervised law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

17. Upon information and belief, at all times hereinafter mentioned, defendant CITY trained law enforcement agents, servants and/or employees, for the City of New York, State of New York.

18. Upon information and belief, at all times hereinafter mentioned defendant NYPD was charged with the duty of enforcing the laws, statutes and/or ordinances for the City of New York, State of New York.

19. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

20. Upon information and belief, at all times hereinafter mentioned defendant NYPD operated law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

21. Upon information and belief, at all times hereinafter mentioned defendant NYPD maintained law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

22. Upon information and belief, at all times hereinafter mentioned defendant NYPD supervised law enforcement agencies, agents, servants and/or employees, for the City of New York, State of New York.

23. Upon information and belief, at all times hereinafter mentioned defendant NYPD trained law enforcement agents, servants and/or employees, for the City of New York, State of New York.

24. Upon information and belief, at all times hereinafter mentioned defendant NYPD operated law enforcement agents, servants and/or employees, for purpose of investigating crimes.

25. Upon information and belief, at all times hereinafter mentioned defendant CITY employed defendant SERGEANT f/n/u SCOGMANILLO (SHIELD# 4519) (hereinafter "SCOGMANILLO").

26. Upon information and belief, at all times hereinafter mentioned defendant NYPD employed defendant SCOGMANILLO.

27. Upon information and belief, at all times hereinafter mentioned defendant CITY employed defendant POLICE OFFICER JOSEPH VITI (SHIELD# 9113) (hereinafter “VITI”).

28. Upon information and belief, at all times hereinafter mentioned defendant NYPD employed defendant VITI.

29. Upon information and belief, at all times hereinafter mentioned defendant CITY employed defendant DETECTIVE DEVIN BAKER (SHIELD# 1595) (hereinafter “BAKER”).

30. Upon information and belief, at all times hereinafter mentioned defendant NYPD employed defendant BAKER.

31. Upon information and belief, at all times hereinafter mentioned defendant CITY employed defendant POLICE OFFICER ELVIS COLLADO (SHIELD# 30692) (hereinafter “COLLADO”).

32. Upon information and belief, at all times hereinafter mentioned defendant NYPD employed defendant COLLADO.

33. Upon information and belief, at all times hereinafter mentioned defendant CITY employed defendant JOHN DOE LIEUTENANT, name unknown.

34. Upon information and belief, at all times hereinafter mentioned defendant NYPD employed defendant JOHN DOE LIEUTENANT.

35. Upon information and belief, at all times hereinafter mentioned defendant CITY employed defendants JOHN DOE POLICE OFFICERS, names unknown.

36. Upon information and belief, at all times hereinafter mentioned defendant NYPD employed defendants JOHN DOE POLICE OFFICERS.

37. Upon information and belief, at all times hereinafter mentioned, defendant SCOGMANILLO is a party to this action individually and in his capacity as an agent of defendant CITY and/or defendant NYPD.

38. At all times relevant to this action, SCOGMANILLO was acting and/or holding himself out as acting within the scope of his employment with defendant CITY and/or the NYPD.

39. Upon information and belief, at all times hereinafter mentioned, defendant VITI is a party to this action individually and in his capacity as an agent of defendant CITY and/or defendant NYPD.

40. At all times relevant to this action, VITI was acting and/or holding himself out as acting within the scope of his employment with defendant CITY and/or the NYPD.

41. Upon information and belief, at all times hereinafter mentioned, defendant BAKER is a party to this action individually and in his or her capacity as an agent of defendant CITY and/or defendant NYPD.

42. At all times relevant to this action, BAKER was acting and/or holding himself or herself out as acting within the scope of his employment with defendant CITY and/or the NYPD.

43. Upon information and belief, at all times hereinafter mentioned, defendant COLLADO is a party to this action individually and in his or her capacity as an agent of defendant CITY and/or defendant NYPD.

44. At all times relevant to this action, COLLADO was acting and/or holding himself or herself out as acting within the scope of his employment with defendant CITY and/or the NYPD.

45. Upon information and belief, at all times hereinafter mentioned, defendant JOHN DOE LIEUTENANT is a party to this action individually and in his capacity as an agent of defendant CITY and/or defendant NYPD.

46. At all times relevant to this action, JOHN DOE LIEUTENANT was acting and/or holding himself out as acting within the scope of his employment with defendant CITY and/or the NYPD.

47. Upon information and belief, at all times hereinafter mentioned, defendant JOHN DOE POLICE OFFICERS are parties to this action individually and in their capacity as agents of defendant CITY and/or defendant NYPD.

48. At all times relevant to this action, JOHN DOE POLICE OFFICERS were acting and/or holding themselves out as acting within the scope of their employment with defendant CITY and/or the NYPD.

49. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled police officers in the manner in which they investigated potential crimes.

50. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant SCOGMANILLO in the manner in which he investigated potential crimes.

51. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant VITI in the manner in which he investigated potential crimes.

52. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant BAKER in the manner in which he investigated potential crimes.

53. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant COLLADO in the manner in which he investigated potential crimes.

54. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant JOHN DOE LIEUTENANT in the manner in which he investigated potential crimes.

55. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendants JOHN DOE POLICE OFFICERS in the manner in which they investigated potential crimes.

56. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled police officers in the manner in which they decided whether to arrested individuals.

57. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant SCOGMANILLO in the manner in which he decided whether to arrested individuals.

58. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant VITI in the manner in which he decided whether to arrested individuals.

59. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant BAKER in the manner in which he decided whether to arrested individuals.

60. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant COLLADO in the manner in which he decided whether to arrested individuals.

61. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendant JOHN DOE LIEUTENANT in the manner in which he decided whether to arrested individuals.

62. Upon information and belief, at all times hereinafter mentioned defendant NYPD controlled defendants JOHN DOE POLICE OFFICERS in the manner in which they decided whether to arrested individuals.

63. On September 2, 2019, plaintiff DESMOND CORYATT resided at 45 Rockaway Parkway, County of Kings, City and State of New York (hereinafter “the premises”).

64. On September 2, 2019, plaintiff DESMOND CORYATT had a legitimate expectation of privacy at the premises.

65. On September 2, 2019, between approximately 6:50 p.m. and 7:10 p.m., plaintiff DESMOND CORYATT was lawfully present at the premises, when defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS came upon said premises.

66. On the above date and time, at the aforesaid premises, plaintiff DESMOND CORYATT was detained by defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

67. On the above date and time, at the aforesaid premises, plaintiff DESMOND CORYATT was arrested by defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

68. On the above date and time, at the aforesaid premises, plaintiff DESMOND CORYATT was searched by defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

69. On the above date and time, at the aforesaid premises, plaintiff DESMOND CORYATT was assaulted and battered by defendants SCOGMANILLO, VITI, BAKER, COLLADO, and JOHN DOE POLICE OFFICERS.

70. On the above date and time, at the aforesaid premises, plaintiff did not consent to the defendants coming upon said premises.

71. On the above date and time, at the aforesaid premises, plaintiff did not consent to being detained, arrested, searched, assaulted and battered by the defendants.

72. On the above date and time, at the aforesaid premises, the defendants came upon said premises without consent.

73. On the above date and time, at the aforesaid premises, the defendants came upon said premises without exigent circumstances.

74. On the above date and time, at the aforesaid premises, the defendants came upon said premises without probable cause.

75. On the above date and time, at the aforesaid premises, the defendants came upon said premises without a warrant.

76. On the above date and time, at the aforesaid premises, the defendants detained, arrested and searched plaintiff without consent.

77. On the above date and time, at the aforesaid premises, the defendants detained, arrested and searched plaintiff without reasonable suspicion.

78. On the above date and time, at the aforesaid premises, the defendants detained, arrested and searched plaintiff without probable cause.

79. On the above date and time, at the aforesaid premises, the defendants detained, arrested and searched plaintiff without a warrant.

80. On September 2, 2019, between approximately 6:50 p.m. and 7:10 p.m., in the driveway of the aforesaid premises, plaintiff DESMOND CORYATT, was lawfully present at said premises, which is his dwelling, when, without consent, reasonable suspicion, probable

cause, or a warrant, and in violation of his State and Federal Constitutional rights, plaintiff was stopped, assaulted, battered, searched, detained, handcuffed, imprisoned, arrested and removed from said location by the defendants, and their agents, servants, and/or employees, and taken into the defendants custody where he remained until approximately September 3, 2019.

81. The defendants, their agents, servants and/or employees, jointly and severally, were reckless, grossly negligent, negligent and careless in that they failed to hire, monitor, train, supervise, and control the NYPD officers and supervisors named herein; failed to properly investigate the facts and circumstances herein; in failing to properly train defendants on proper procedure on stopping, seizing, and arresting members of the public; in allowing defendants to stop, seize, and arrest Plaintiff and other members of the public without reasonable suspicion, probable cause, or a warrant; in failing to properly train defendants on proper procedure for entering private property; in allowing defendants to enter Plaintiff's and other members of the public's private property without probable cause, exigent circumstances, or a warrant; in failing to properly train the defendants on the use of force; in allowing defendants to use excessive force on Plaintiff and other members of the public; in allowing defendants to routinely deprive members of the public of their Federal and State Constitutional rights; in failing to monitor members of the NYPD; in that defendants detained, arrested, and incarcerated the Plaintiff without probable cause or a warrant; in that defendants used excessive force upon Plaintiff; in failing to properly utilize handcuffs; in failing to follow their own guidelines; in failing to comply with the rules and regulations of the New York City Police Department; failed to act reasonably under the circumstances; failed to take proper cognizance of the existing facts and conditions; defendants initiated criminal proceedings against Plaintiff without probable cause; defendants initiated criminal proceedings against Plaintiff with malice; defendants actions were

done in reckless disregard of the rights of Plaintiff; in violating the United States Code, including but not limited to Sections 1981 through 1988 of Title 42; defendants violated the civil rights of Plaintiff; defamed and disgraced Plaintiff; and that defendants were otherwise negligent, careless and reckless in the instance.

82. Plaintiff has a right to be free from illegal searches and seizures of his person; a right to be free from unlawful arrest, detention, and imprisonment; a right to equal protection of the laws; civil rights secured to plaintiff by the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution and by Title 42 of the United States Code Section 1983, as well as the Constitution and laws of the State of New York.

83. Upon information and belief, at all times hereinafter mentioned, it was and remains the duty of the defendants owed to plaintiff, to carry out their official police duties in a manner that is consistent with the Constitution and laws of New York State and the United States of America.

84. At all times relevant herein, it is alleged that all defendants breached these duties owed to plaintiff.

85. That since the acts complained of herein occurred, plaintiff DESMOND CORYATT was subjected to unlawful harassment and intimidation; unlawful detention and false and unlawful arrest; illegal search; excessive force; unlawful and false placement in handcuffs; false imprisonment; embarrassment and humiliation; public disgrace; public embarrassment; suffered great mental and physical distress, in addition to personal injuries; as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable

therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

86. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

87. By reason of the foregoing, defendants actions were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to plaintiffs for which plaintiffs are entitled to punitive damages against the defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of the action.

**SECOND CAUSE OF ACTION
FOR ASSAULT AND BATTERY**

88. Plaintiff repeats and re-alleges paragraphs each and every allegation contained above as if fully set forth and restated here.

89. On September 2, 2019, between approximately 6:50 p.m. and 7:10 p.m., in the driveway of the aforesaid premises, plaintiff DESMOND CORYATT, was lawfully present at said premises, which is his dwelling, when he was assaulted and battered by defendants SCOGMANILLO, VITI, BAKER, COLLADO, and JOHN DOE POLICE OFFICERS, by violently pushing him against a brick wall, slamming his body to the ground, and striking him multiple times with their fists causing serious physical injuries as hereinafter alleged.

90. On September 2, 2019, at all times hereinafter mentioned, at the aforesaid premises, defendants SCOGMANILLO, VITI, BAKER, COLLADO, and JOHN DOE POLICE OFFICERS who committed the aforementioned assault and battery upon plaintiff, were acting within the scope of their employment with defendants CITY and/or NYPD.

91. On September 2, 2019, at all times hereinafter mentioned, the aforementioned assault and battery was performed knowingly, intentionally, willfully, and with actual malice.

92. On September 2, 2019, at all times hereinafter mentioned, the aforementioned assault and battery was without probable cause and was not the result of an appropriate arrest.

93. As a result of the aforementioned conduct of the defendants, plaintiff was subjected to excessive force and sustained physical injuries.

94. That since the acts complained of herein occurred, plaintiff DESMOND CORYATT was greatly humiliated, suffered great mental and physical distress, in addition to personal injuries; as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

95. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

96. By reason of the foregoing, defendants actions were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to plaintiffs for which plaintiffs are entitled to punitive damages against the defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of the action.

**THIRD CAUSE OF ACTION
FOR FALSE IMPRISONMENT**

97. Plaintiff repeats and re-alleges paragraphs each and every allegation contained above as if fully set forth and restated here.

98. On September 2, 2019, at all times hereinafter mentioned, defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS, were acting within the scope of their employment when they, without justification and probable cause, imprisoned the plaintiff.

99. On September 2, 2019, at all times hereinafter mentioned, defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

100. That since the acts complained of herein occurred, plaintiff DESMOND CORYATT was greatly humiliated, suffered great mental and physical distress, in addition to personal injuries; as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

101. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

102. By reason of the foregoing, defendants actions were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to plaintiffs for which plaintiffs are entitled to punitive damages against the defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of the action.

FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, RETENTION, TRAINING, AND SUPERVISION

103. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

104. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD controlled the hiring of its agents, servants and/or employees, including but not limited to the defendant police officers named herein.

105. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD controlled the hiring of defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

106. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD supervised the hiring of its agents, servants, and/or employees, including but not limited to the defendant police officers named herein.

107. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD supervised the hiring of defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

108. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to control its agents, servants and/or employees, including but not limited to the defendant police officers named herein.

109. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to control defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

110. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to supervise its agents, servants and/or employees, including but not limited to the defendant police officers named herein.

111. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to supervise defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

112. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to train its agents, servants and/or employees, including but not limited to the defendant police officers named herein.

113. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had the responsibility to train defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

114. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had and still has full power and authority to provide initial and ongoing training, and to supervise and control the conduct and action of police officers employed by it in the exercise of police functions.

115. Upon information and belief, at all times hereinafter mentioned, it was and remains the duty and special duty of defendants CITY and NYPD, owed to plaintiff, to monitor, supervise, and control the conduct and actions of the aforesaid defendant police officers and detectives employed by it in the exercise of police functions.

116. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD did not exercise reasonable care and diligence in the selection, hiring, retention, training, control, and supervision of their agents, servants, and employees, and were negligent in the hiring, retention, training, and supervision of defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

117. Upon information and belief, at all times hereinafter mentioned, defendants CITY and NYPD had prior knowledge of the inappropriate, unlawful, and improper conduct of defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS.

118. Plaintiff's injuries arose from the inadequate hiring, retention, training, supervision, and/or control of defendants CITY and NYPD's servants, agents, and/or employees, in that defendants failed to properly screen and evaluate their potential servants, agents, and/or employees; failed to properly reevaluate their servants, agents, and/or employees; failed to use reasonable care, in failing to draft, enforce, and/or follow reasonable and adequate guidelines; in failing to follow standard operating procedure; in failing to properly train said agents, servants and/or employees; in negligently retaining said, agents, servants and/or employees; allowed defendants to enter individual's property without warrants; allowed defendants to detain, search and arrest individuals without probable cause or reasonable suspicion; allowed defendants to detain, search and arrest individuals based on racial profiling and/or improper economic gain; allowed defendants to willfully, wantonly, recklessly and/or negligently use excessive force and violence; in failing to conduct an investigation concerning said, agents, servants and/or employees; in failing to use reasonable care to correct or remove said agents, servants and/or employees; and in otherwise being careless, reckless and negligent herein.

119. That since the acts complained of herein occurred, plaintiff DESMOND CORYATT was greatly humiliated, suffered great mental and physical distress, in addition to personal injuries; as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

120. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

121. By reason of the foregoing, defendants actions were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to plaintiffs for which plaintiffs are entitled to punitive damages against the defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of the action.

FIFTH CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER 42 U.S.C. 1983

122. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

123. All of the aforementioned acts of defendants CITY, NYPD, SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS, and their agents, servants, and employees, were carried out under the color of state law.

124. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipal/authority, which is forbidden by the Constitution of the United States of America.

125. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendment to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

126. The acts complained of were carried out by the aforementioned defendants in their capacities as police officers with actual and/or apparent authority attendant thereto.

127. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the defendant CITY and NYPD, all under the supervision of ranking officers of said department.

128. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipal/authority, which is forbidden by the Constitution of the United States of America.

129. That the assault, battery, excessive force, false arrest, and false imprisonment was in violation of the plaintiff's civil rights, more particularly 42 U.S.C. § 1983 as well as other applicable statutes and federal laws.

130. That the defendants' actions were not privileged or immune.

131. That since the acts complained of herein occurred, plaintiff DESMOND CORYATT was greatly humiliated, suffered great mental and physical distress, in addition to personal injuries; as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did

engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

132. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

133. By reason of the foregoing, defendants actions were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to plaintiffs for which plaintiffs are entitled to punitive damages against the defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of the action.

SIXTH CAUSE OF ACTION
LIABILITY FOR HIRING, SUPERVISION, TRAINING, AND RETENTION UNDER 42
U.S.C. 1983

134. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

135. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipal agency/authority, which is forbidden by the Constitution of the United States.

136. The aforementioned customs, policies, usages, practices, procedures and rules of defendants CITY and NYPD included, but were not limited to, a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff's rights as described herein.

137. As a result of the failure of defendants NYPD and CITY to properly recruit, screen, train, discipline, and supervise its officers, including defendants SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS, defendants CITY and NYPD has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

138. The foregoing customs, policies, usages, practices, procedures and rules of defendants NYPD and CITY constitute deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

139. The foregoing customs, policies, usages, practices, procedures and rules of defendants NYPD and CITY were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

140. The foregoing customs, policies, usages, practices, procedures and rules of defendants NYPD and CITY were the moving force behind the constitutional violations suffered by the plaintiff herein.

141. Upon information and belief, at all times hereinafter mentioned, defendants CITY and/or NYPD, negligently and/or intentionally acted under color of state law, engaged in a pattern and practice and/or sanctioned a pattern and practice of actions and/or conduct by its officers designed to and/or conduct by its officer designed to and/or which has the effect of depriving individuals of their clear rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

142. Based on the foregoing, one and/or more of the above municipalities are vicariously liable for the violations of plaintiff's constitutional rights by one and/or more of their respective employees.

143. Based upon the foregoing, one more of the above-named defendants violated 42 U.S.C. Section 1983, given that these actions were undertaken under color of state law.

144. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the right to be free from assault, battery, unlawful imprisonment, unlawful arrest, search and seizure of one's person, and the right to be secure in one's own dwelling.

145. That the defendants' actions were not privileged or immune.

146. That since the acts complained of herein occurred, plaintiff DESMOND CORYATT was greatly humiliated, suffered great mental and physical distress, in addition to personal injuries; as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

147. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

148. By reason of the foregoing, defendants actions were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to plaintiffs for which plaintiffs are entitled to punitive damages against the defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of the action.

**SEVENTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

149. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

150. Defendants, CITY, NYPD, SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS intentionally engaged in behavior that harassed, intimidated, assaulted, battered, and injured the plaintiff, and falsely detained, falsely and illegally incarcerated, arrested, and charged plaintiff maliciously and in a manner that was extreme, outrageous, unjustified, and done with actual malice and wanton indifference to and deliberate disregard for the civil rights of plaintiff, causing plaintiff to suffer severe physical and emotional distress for which said defendants are individually liable.

151. That since the acts complained of herein occurred, plaintiff DESMOND CORYATT was greatly humiliated, suffered great mental and physical distress, in addition to personal injuries; as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

152. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

153. By reason of the foregoing, defendants actions were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to plaintiffs for which

plaintiffs are entitled to punitive damages against the defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of the action.

**EIGHTH CAUSE OF ACTION FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

154. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth and restated here.

155. Defendants, CITY, NYPD, SCOGMANILLO, VITI, BAKER, COLLADO, JOHN DOE LIEUTENANT, and JOHN DOE POLICE OFFICERS negligently and recklessly engaged in behavior that harassed, intimidated, assaulted, battered, and injured the plaintiff, and falsely detained, falsely and illegally incarcerated, arrested, and charged plaintiff maliciously and in a manner that was extreme, outrageous, unjustified, and done with actual malice and wanton indifference to and deliberate disregard for the civil rights of plaintiff, causing plaintiff to suffer severe physical and emotional distress for which said defendants are individually liable.

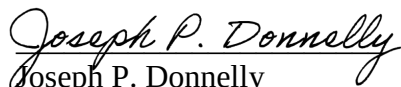
156. That since the acts complained of herein occurred, plaintiff DESMOND CORYATT was greatly humiliated, suffered great mental and physical distress, in addition to personal injuries; as a result of which plaintiff became sick, sore, lame and disabled and will be so sick, sore, lame and disabled for some time to come; was obliged to and necessarily did engage and procure aid and attention in an endeavor to cure himself of his hurts and wounds and did necessarily pay and become liable therefore; suffered lost earnings; and had to obtain legal counsel to defend him, and has incurred liability therefore.

157. That by reason of said injuries plaintiff, has been and will be unable to attend to his usual affairs and duties and plaintiff has lost and will lose diverse sums of money thereby, including lost earnings, and plaintiff has been otherwise damaged, said damages exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

158. By reason of the foregoing, defendants actions were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to plaintiffs for which plaintiffs are entitled to punitive damages against the defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of the action.

WHEREFORE, the plaintiff demands judgment against the defendants on all causes of action for compensatory damages in an amount that exceeds the jurisdictional limits of all lower courts, punitive damages, and attorneys' fees; together with the costs and disbursements of this action and for such other and further relief as to this court may seem just and proper.

Dated: Woodbury, New York
May 26, 2020


Joseph P. Donnelly
SALENGER, SACK,
KIMMEL & BAVARO, LLP
Attorneys for Plaintiff
180 Froehlich Farm Boulevard
Woodbury, New York 11797
(516) 677-0100

ATTORNEY'S AFFIRMATION

The undersigned, an attorney duly admitted to practice in the courts of the State of New York, hereby affirms the following under the penalties of perjury, that the affiant is an associate of

Salenger, Sack, Kimmel & Bavaro, LLP

attorney(s) of record for the plaintiff(s) in the within action; that the affiant has read the foregoing

COMPLAINT

same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. Affiant further says that the reason this affirmation is made by affiant and not by the plaintiff(s), is that the plaintiff(s) are outside the County where our office is maintained.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Statements of the plaintiff(s), contents of file, books and records.

Dated: Woodbury, New York
May 26, 2020


JOSEPH P. DONNELLY

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DESMOND CORYATT,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SERGEANT f/n/u
SCOGMANILLO (SHIELD #4519), POLICE OFFICER JOSEPH VITI (SHIELD #9113),
DETECTIVE DEVIN BAKER (SHIELD #1595), POLICE OFFICER ELVIS COLLADO
(SHIELD #30692), JOHN DOE LIEUTENANT, name unknown, and JOHN DOE POLICE
OFFICERS, names unknown,

Defendants.
-----X

SUMMONS AND COMPLAINT

SALENGER, SACK, KIMMEL & BAVARO, LLP

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